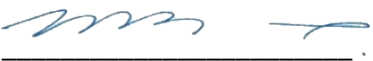
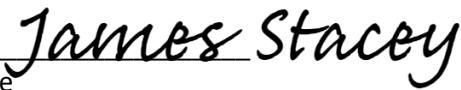


Collaborative Research Agreement (SCU Multi Party)

AGREEMENT SCHEDULE	
Part A: PARTIES TO THE AGREEMENT AND ADDRESSES FOR SERVICES OF NOTICES	
Parties	
PARTY A: The University (Administering Institution)	Southern Cross University, a body corporate incorporated under the <i>Southern Cross University Act 1993</i>
ABN	41 995 651 524
Address	Military Road, EAST LISMORE, 2480, NSW, AUSTRALIA
Authorised Officer	Professor Mary Spongberg
Telephone	02 6620 3458
Facsimile	Not applicable
Email	grants.contracts@scu.edu.au
PARTY B: Collaborating Organisation	Urapuntja Health Service Aboriginal Corporation
ABN/ACN	45 449 518 275
Address	PMB 31, Utopia, via Alice Springs NT 0870
Authorised Officer	James Stacey, CEO
Telephone	+61 (08) 8956 9875
Email	ceo@urapuntja.org.au
Part B: AGREEMENT DETAILS	
Item 1 Commencement Date	On the date that this Agreement is fully executed
Item 2: Completion Date	30 June 2026
Item3: Project	Project: <i>Building capacity of regional and remote ACCHOs for Birthing on Country Initiatives and augmented smoking cessation care through University-ACCHO partnerships</i> as described in the the (Head Agreement)
Item 4: Funding Rules	The Administering Institution and the Collaborating Organisation agree that the management and performance of the Project will at all times be in accordance with Head Agreement attached to Annexure A between the Sponsor (Department of Health and Aged Care (DoHAC)) and the Administering Institution.
Item 5: Specified Personnel	
Item 6: Funding Allocations	As set out in Annexure B
Item 7: Intellectual Property Ownership	As set out in Clause 3 of this Agreement
Item 8: Contributions	As set out in Annexure B

THE TERMS AND CONDITIONS OF THIS AGREEMENT ARE ACCEPTED AND AGREED TO BY THE PARTIES UPON SIGNATURE OF THE ADMINISTERING INSTITUTION'S AUTHORISED REPRESENTATIVE AND THE COLLABORATING ORGANISATION'S AUTHORISED REPRESENTATIVES.

Executed as an Agreement	
Southern Cross University	SIGNED for and on behalf of Southern Cross University by its duly authorised representative  Signature Mary Spongberg Printed Name DVCRAC Position 25/09/2023 Date
Party B	SIGNED for and on behalf of Urapuntja Health Service Aboriginal Corporation by its duly authorised representative  Signature James Stacey Printed Name Chief Executive Officer Position 26-Sep-2023 Date

Recitals

- A. The Collaborating Organisation wishes to participate in the Project.
- B. This Agreement covers the roles of the Administering Institution and the Collaborating Organisation in the Project including the:
 - i. Contributions and Funding Allocations to be provided;
 - ii. intellectual property arrangements; and
 - iii. conditions of the Collaborating Organisation's participation in the Project.

1. Relationship

- 1.1 This Agreement commences on the Commencement Date and continues until the Completion Date unless terminated earlier in accordance with this Agreement. The Parties may by mutual written agreement extend the Completion Date.
- 1.2 The Collaborating Organisation acknowledges that they have read and understand the Head Agreement and any applicable Funding Rules and agree that:
 - 1.2.1 the Collaborating Organisation will perform its obligations in accordance with this Agreement;
 - 1.2.2 the Project shall be managed by the Administering Institution; and
 - 1.2.3 the Funding shall be allocated by the Administering Institution in accordance with the Funding Allocations.

2 Project

- 2.1 The Collaborating Organisation agrees to:
 - 2.1.1 carry out their Project Activities in a competent and diligent manner;
 - 2.1.2 make available their Specified Personnel. If any Specified Personnel become unable or unavailable to participate in the Project, the Collaborating Organisation must use their best endeavours to replace them with persons of at least equivalent experience, ability and expertise;
 - 2.1.3 ensure that their personnel and students attending the Administering Institution's premises to perform Project Activities comply with the Administering Institution's occupational health and safety policies; comply with the directions of the Administering Institution's personnel; do not cause any obstruction or nuisance to the Administering Institution's activities; and if required by the Administering Institution sign a confidentiality agreement in favour of the Administering Institution to protect the secrecy of any Confidential Information;
 - 2.1.4 provide reports of the Collaborating Organisation's progress with the Project Activities (Progress Report) as required by the Administering Institution. A Progress Report is to detail at a minimum any Project Intellectual Property produced and the balance of any Funding Allocations the Collaborating Organisation has not expended on the Project as at the date of the Progress Report;
 - 2.1.5 recruit and employ a BOC Team (comprising a suitably qualified Aboriginal Midwife and Senior Aboriginal Community Women Advisors) as employees of the Collaborating Organisation on employment terms and position descriptions as agreed by the parties;

- 2.1.6 further advise and consult with the Administering Institution as soon as possible on alternate options if a suitably qualified BOC Team could not be recruited;
 - 2.1.7 supervise the Aboriginal Midwife's clinical duties at the Collaborating Organisation's premises; and
 - 2.1.8 ensure the BOC Teams' co-operation with the Collaborating Organisation's workplace health and safety policies and procedures, and any code of conduct whilst on its premises
- 2.2 The Administering Institution agrees to:
- 2.2.1 provide ethics clearance that confirms the proposed project complies with relevant ethical standards;
 - 2.2.2 adhere to the intended tasks and projected outcomes at outlined in the Approved Work Plan as set out in Annexure C;
 - 2.2.3 at all times respect local cultural sensitives and protocols as informed by the Collaborating Organisation, as detailed in the Approved Work Plan;
 - 2.2.4 provide the Collaborating Organisation with verbal quarterly reports on the progress of the Project, by way of Zoom meetings, the timing and invitees to which will be as agreed between the parties; and
 - 2.2.5 provide support, where reasonably practicable to do so, in training and supervising the BOC Team on research and outreach activities.

3 Project Intellectual Property

- 3.1 The Parties agree that the ownership of all right, title and interest in the Project Intellectual Property will upon its creation vests in the Administering Institution and also the Sponsor if required by the Head Agreement.
- 3.2 The Administering Institution will provide the Collaborating Organisation with an irrevocable, nonexclusive, world-wide, royalty free, fully paid up non-commercial licence to use, reproduce and adapt the Project Intellectual Property that they contributed to for its own purposes except to exploit the Project Intellectual Property for Commercial Purposes.
- 3.3 For the avoidance of doubt, unless expressly provided for in this Agreement, a Party's ownership of any of its Background Intellectual Property that existed at the Commencement Date is not affected by providing or making available such Background Intellectual Property for the Project Activities.

4 Funding and Contributions

- 4.1 The Collaborating Organisation must provide its Contributions at the times and the manner specified in the Application and/or the Head Agreement unless varied by item 8 of the Agreement Details.
- 4.2 The Administering Institution shall distribute to the Collaborating Organisation the Funding in accordance with the amounts and times set out in the Funding Allocations. If any Funding Allocations are linked to the achievement of a Milestone, then the linked Funding Allocations will not be distributed until the Administering Institution is satisfied that the Milestone has been achieved.

- 4.3 The Collaborating Organisation must only use the Funding Allocations it receives for the purposes of the Project.
- 4.4 Subject to clause 16, the Collaborating Organisation agrees that the Funding Allocations include all costs of a Collaborating Party to provide its Project Activities including the costs of labour, plant, equipment, tools, appliances, or other property used by the Collaborating Organisation and all superannuation and taxes of any kind.
- 4.5 The Collaborating Organisation must repay to the Administering Institution at its reasonable direction any Funding Allocations, which were not spent or committed in accordance with this Agreement.

5 Assets

- 5.1 Unless otherwise explicitly provided for in the Head Agreement the:
 - 5.1.1 Administering Institution shall own all assets purchased wholly or partly with Funds (Assets) and the Assets must be used and made available in accordance with the Head Agreement;
 - 5.1.2 Collaborating Organisation must not sell, hire, mortgage or otherwise encumber any Assets made available to the Collaborating Organisation under this Agreement; and
 - 5.1.3 Administering Institution must, at its own expense, retrieve all Assets within 30 days of completion or termination of the Project, beyond which the Collaborating Organisation may at its discretion dispose any unclaimed Assets on its premises

6 Protection of Confidential Information

- 6.1 A Party to this Agreement may receive or obtain Confidential Information (Recipient) of another Party to this Agreement (Disclosing Party).
- 6.2 The Recipient must protect and maintain the secrecy of Confidential Information it receives from the Disclosing Party except to the extent absolutely necessary to perform its obligations under this Agreement.
- 6.3 The obligation of the Recipient to protect Confidential Information of the Disclosing Party continues from the Commencement Date until the Confidential Information either ceases to be Confidential Information or is returned to the Disclosing Party. If the Recipient considers that it is required to disclose Confidential Information pursuant to an Obligation it must:
 - 6.3.1 promptly give notice to the Disclosing Party with full details of the Obligation and reasons why the Recipient considers that it must disclose the Confidential Information; and
 - 6.3.2 give the Disclosing Party a reasonable opportunity to challenge in a court of law or other appropriate body whether such disclosure is necessary; or whether there is an Obligation of the Recipient to make the disclosure.
- 6.4 Unless expressly permitted by the Disclosing Party, a Recipient must not:
 - 6.4.1 modify, or reproduce in any way the Confidential Information other than for the Approved Purposes;
 - 6.4.2 manufacture any product, develop any service or use any process based on the Confidential Information; and

6.4.3 disclose any Confidential Information to Third Parties to assist in the carrying out of the Approved Purposes, unless the Third Parties have signed a confidentiality agreement that protects the Confidential Information on not less stringent terms than this Agreement.

6.5 The Recipient acknowledges that damages may not be an adequate remedy for any breach of the Recipient of its obligations and responsibilities under clauses 6.2, 6.3 and 6.4. Consequently, in the event of an actual or threatened breach by the Recipient of the abovementioned clauses, the Disclosing Party is entitled to seek specific performance or injunctive relief as a remedy for any such breach or threatened breach, in addition to any other remedies available at law or in equity under this Agreement or independently of this Agreement.

6.6 Clause 6 survives the expiration or termination of this Agreement.

7 Return of Confidential Information

7.1 At any time upon the written Notice of the Disclosing Party to the Recipient's Authorised Officer, the Recipient must, at its own expense, immediately cease all use of the whole or part of the Disclosing Party's Confidential Information, and return or destroy as the Disclosing Party directs:

7.1.1 Confidential Information in it or its Third Parties possession (including all copies of the Confidential Information); and

7.1.2 any documents created by the Recipient or its officers, employees and Third Parties which were derived or created from the Confidential Information.

7.2 If the Recipient or its Third Parties are required under an Obligation to retain a copy of the Confidential Information, the Recipient must take all necessary steps to secure and protect the Confidential Information until it is returned to the Disclosing Party.

7.3 Clause 7 survives the expiration or termination of the Agreement.

8 Insurances

8.1 The Parties will maintain during this Agreement the following insurances or similar protections in the amounts prescribed:

8.1.1 public liability insurance and professional indemnity insurance of \$10 million on any one claim but limited to \$20 million (AUD) in the aggregate;

8.1.2 personal accident insurance cover for students; and

8.1.3 Workers Compensation cover for their employees.

8.2 Upon request a Party must promptly provide proof of its insurances or protections to the requesting Party.

9 Warranties

9.1 The Collaborating Organisation warrants that they:

9.1.1 are properly constituted and have the rights and authority to enter into this Agreement;

9.1.2 have the necessary Intellectual Property rights and have procured the necessary Moral Rights consents to grant access to and the right to use its Background Intellectual Property to the other Parties or the Sponsor;

9.1.3 will co-operate with the other Parties as reasonably necessary for the proper performance of the Project; and

- 9.1.4 will perform their obligations under this Agreement to the extent that they are reasonably possible to do so to enable timely progress of the Project.

10 Publications

10.1 Subject to the Head Agreement:

- 10.1.1 this Agreement shall not be interpreted to prevent or delay publication by a Party of results relating to the Project;
 - 10.1.2 Parties are entitled to publish the results of the Project provided that the Confidential Information of another Party is not disclosed. The publishing Party must provide the other Parties with a copy of any publication; and
 - 10.1.3 the Parties agree that students that participate in the Project may publish the results of their Project Activities that do not include Confidential Information of another Party or the Sponsor.
- 10.2 Parties shall not publish any Paper containing or referring to any Confidential Information of another Party (Disclosing Party) without the prior written consent of the Disclosing Party. The Parties shall negotiate in good faith for a period of no more than 30 days, using their best endeavours to resolve any requested amendments or delays by the Disclosing Party to the publication of the Paper.
- 10.3 Parties must comply with any acknowledgement requirements of the Sponsor for the Funding or dissemination requirements of any information or data related to the Project Activities.

11 Privacy

- 11.1 The Administering Institution may collect Personal Information about the Collaborating Organisation's officers, employees and Third Parties during this Agreement.
- 11.2 The Administering Institution may use or disclose the Personal Information that it collects for the purposes of performing, administering and managing this Agreement and will comply with its obligations under the *Privacy and Personal Information Act 1998 (NSW)*.
- 11.3 If the Collaborating Organisation collects Personal Information relating to the Administering Institution's staff or students the Collaborating Organisation must only use or disclose the Personal Information as necessary to perform their obligations under this Agreement as if the Collaborating Organisation were a government agency that is required to comply with the *Privacy and Personal Information Act 1998 (NSW)*.

12 Access to Information

- 12.1 The Collaborating Organisation acknowledges that Part 3, Division 5 of the GIPA Act requires the Administering Institution to maintain a publicly available register of government contracts that records information about certain contracts between the Administering Institution and private sector bodies. The Collaborating Organisation acknowledges that where applicable, details of this Agreement (excluding any commercial-in-confidence provisions) may be lawfully published by the Administering Institution.

- 12.2 The Collaborating Organisation must within 7 days of receiving a written Notice by the Administering Institution, provide the Administering Institution with immediate access to the information contained in records held by the Collaborating Organisation in relation to the Project to enable the Administering Institution to comply with its obligations under the GIPA Act.
- 12.3 Any failure by the Collaborating Organisation to comply with any written Notice of the Administering Institution pursuant to clause 12.2 will be a material breach of this Agreement.

13 Liability and Indemnity

- 13.1 To the extent permitted by law, the Administering Institution's total liability to the Collaborating Organisation in contract (including under an indemnity), tort (including negligence), breach of statutory duty or otherwise in respect of any loss, damage or expense arising out of, or in connection with, this Agreement shall not exceed in aggregate for all claims that arise out of or in connection with this Agreement the Funding that the Administering Institution has received from the Sponsor.
- 13.2 The Collaborating Organisation must indemnify and hold harmless the Administering Institution against any liability, loss or damage, costs, expenses or Claims which the Administering Institution suffers, incurs or becomes liable for (including legal costs on a solicitor and client basis) to the extent it arises out of:
 - 13.2.1 any wilful misconduct or unlawful, malicious or negligent act or omission of the Collaborating Organisation or their officers, employees, students and subcontractors in connection with the Project Activities; or
 - 13.2.2 the unauthorised or unlawful use or disclosure of any of the Administering Institution's Background Intellectual Property by the Collaborating Organisation or their officers, employees, students and subcontractors.
- 13.3 A Party's liability to another Party under this Agreement shall be reduced to the extent that any loss, damage or cost arises from or is attributable to any act or omission of the other Party including their employees, students, contractors, or agents.

14 Termination

14.1 If the Sponsor fails to provide the Funding as agreed in the Head Agreement or the Head Agreement is terminated for any reason, this Agreement may be terminated by either party with immediate effect by Notice in writing. The Collaborating Organisation will be entitled to payment of costs and expenses from the Funding that it has incurred or committed for the Project as at the effective date of termination, which will not exceed the amount of the Funding Allocations that have been allocated to the Collaborating Organisation in item 6 of the Agreement Details.

14.2 If:

14.2.1 a party breaches any material term of this Agreement not capable of remedy;
or

14.2.2 a party breaches any material term of this Agreement capable of remedy and fails to remedy the breach within the period specified in Notice requiring it to do so; or

14.2.3 in the case of the Collaborating Organisation, an Insolvency Event occurs (whether or not notified),
then the other party:

14.2.4 may immediately terminate this Agreement by Notice in writing to the first party.

14.2.5

14.3 If this Agreement is terminated the parties must:

14.3.1 take all reasonable steps to mitigate its costs; and

14.3.2 promptly return all property in their possession belonging to another Party, including any Confidential Information.

14.4 Subclauses 14.1 and 14.3 shall survive termination of the Agreement.

15 Subcontracting

The Collaborating Organisation must not subcontract any of the Project Activities it is to perform without the permission of the Administering Institution. Subcontracting the whole or part of the Project Activities will not relieve the Collaborating Organisation from any of their obligations under this Agreement.

16 GST

If the supply of any Project Activities is a taxable supply for which GST is payable within the meaning of the GST Law, then the Administering Institution must pay any GST that is recoverable in respect of the taxable supply in addition to the cost of the Project Activities.

17 Expenses

The Administering Institution will not be responsible or liable for any costs, claims or expenses that are not covered by the Funds a Party receives. The Administering Institution will not reimburse the Collaborating Organisation for any other expenses unless the Administering Institution has approved in writing those additional expenses.

18 Force Majeure

The Party whose performance is affected by the Force Majeure event must use all reasonable diligence to promptly overcome or remove the Force Majeure event to the extent the same is capable of being overcome or removed.

19 Notices

A Notice or any other communication is properly given if it is delivered by hand, posted, sent by fax or by e-mail to the other Party's Authorised Officer at their relevant address specified in the Agreement Schedule.

20 Entire agreement

20.1 This Agreement comprises the following:

20.1.1 clauses 1 to 24 inclusive, the definitions and interpretations (cl 25), and the Agreement Schedule; and

20.1.2 Annexures A and B (if applicable).

21 Inconsistency

To the extent that there is any inconsistency between terms and conditions of documents that comprise the Agreement, the inconsistency shall be resolved by the terms and conditions of the documents higher in the order in which they appear in clause 20.1 prevailing over any terms of lower documents.

22 Waiver

A Party's non-exercise or delay in exercise of a right, power or remedy does not prevent the exercise of that right, power or remedy by that party. A failure or delay to exercise a right or power arising from this Agreement does not amount to a waiver of that right or power.

23 Governing Law

This Agreement is governed by the laws of the State of New South Wales. The Parties irrevocably and unconditionally submit to the non-exclusive jurisdiction of the courts or tribunals exercising jurisdiction in that state.

24 Counterparts

This Agreement may be signed in counterparts by the Parties. All counterparts when taken together constitute one instrument.

25 Definitions

25.1 The following words have these meanings in this agreement:

Administering Institution means Southern Cross University whose details are set out in the Agreement Schedule.

Agreement means those documents listed in clause 20.

Agreement Details means the Agreement details at the front of this Agreement contained in the Agreement Schedule.

Agreement Schedule means the agreement schedule at the front of this Agreement.

Annexures means Annexures A and B if applicable.

Application means the application submitted to the Sponsor organisation for Funding that resulted in the Sponsor entering into the Head Agreement with the Administering Institution and/or Collaborating Organisation as the case may.

Approved Purposes means the right to use or modify the Confidential Information granted by the Disclosing Party to the Recipient.

Authorised Officer means a party's nominated authorised officer whose details are set out in the Agreement Schedule.

Background Intellectual Property means any software or other Intellectual Property rights owned or licensed by a Party that is developed prior to the Commencement Date or independently of this Agreement.

Claims means any third party claim for costs (including legal costs on a lawyer and client basis), damages, debt, expense, tax, loss howsoever arising from any allegation, suit, action, demand, cause of action, proceeding or judgment of any kind made under or in connection with this Agreement however calculated or caused, and whether direct or indirect, consequential, contingent, incidental or economic.

Commencement Date means the date set out in Item 1 of the Agreement Details.

Commercial Purposes means but is not limited to the sale, licence, lease or other transfer of the Project Intellectual Property to another entity or person.

Completion Date means the date set out in Item 2 of the Agreement Details.

Confidential Information means any of the following information which is either disclosed by a Party under this Agreement or observed by a Party its officers, employees or Third Parties whilst performing activities associated with this Agreement:

- (a) any financial, business, technical and all other commercially valuable information;
- (b) information which is by its nature confidential or which is designated by the Disclosing Party as Confidential to it (including during negotiations, discussions and meetings); and
- (c) any and all information created, derived, or ascertained directly or indirectly by the Recipient from the Confidential Information,

but excludes information which is:

- i. generally available in the public domain at the date of its disclosure to the Recipient;
- ii. already properly in the possession of the Recipient in written form which the Recipient can demonstrate by written record at the date of its disclosure to be available to the public from sources other than the Recipient or properly available to the Recipient from another entity or person after the date of disclosure to the Recipient;
- iii. demonstrated by the Recipient by written record to be independently developed by an employee or agent of the Recipient having no knowledge of such information the subject of the disclosure; or
- iv. information that the University is required to disclose or publish under the *Government Information (Public Access) Act (NSW)*.

Contributions means the total cash and/or in kind contributions that a Party is to provide specified in the Application as varied by the Head Agreement and/or Item 8 of the Agreement Details.

Head Agreement means the funding agreement or parts thereof referred to in item 3 of the Agreement Details or attached to Annexure A between the Sponsor and the Administering Institution.

Force Majeure event means anything outside a Party's reasonable control, causing that Party to be unable to perform or observe on time an obligation under this Agreement including, without limitation, fire, storm, earthquake, explosion, accident, enemy acts, war, rebellion, insurrection, terrorism, sabotage, epidemic, quarantine restriction, general strikes and power, water or other utility shortage.

Funding means the funding provided by the Sponsor to undertake the Project.

Funding Allocation means the amount of the Funding to be paid, at the times and in the manner set out in Item 6 of the Agreement Details.

Funding Rules means any rules of the Sponsor applicable to the Project specified in Item 4 of the Agreement Details.

GIPA Act means the *Government Information (Public Access) Act 2009* (NSW).

GST means the Goods and Services Tax as imposed by GST Law.

GST Law has the same meaning as in *A New Tax System (Goods and Services Tax) Act 1999* as amended or replaced from time to time.

Insolvency Event means where a Party is insolvent pursuant to s95A of the Corporations Act 2001 or must be presumed by a court to be insolvent by reason of an event set out in section 459C of the Corporations Act.

Intellectual Property means all legal and beneficial rights resulting from intellectual activity whether capable of protection by statute, common law or equity including patent rights, copyright, database rights, registered design rights, utility model, trade mark (whether registered or not) brand name, service mark, trade name, plant varieties, circuit layouts, eligible layout rights, chip topography right, product formulations, processes, devices, methods, formulae, graphs, drawings, discoveries, inventions and all other rights resulting from intellectual activity in the industrial, scientific, literary or artistic fields but excludes Moral Rights.

Milestone means a group of tasks relating to the Project Activities.

Moral Rights means a person's moral rights as defined in the *Copyright Act 1968* (Cth) including:

- (a) the right of attribution of authorship;
- (b) the right of integrity of authorship; and
- (c) the right not to have authorship falsely attributed.

Notice means any notice, demand, consent, approval or other communication in connection with this Agreement.

Obligation/s means any law or legally binding order of any court, government, semi-government authority or administrative or judicial body.

Paper means any paper, report, article, student thesis, instructional material, internet posting or other electronic disclosure.

Parties means the Collaborating Organisation and the Administering Institution.

Personal Information means personal information as defined in the *Privacy and Personal Information Act 1998* (NSW).

Project means the project described in Item 3 of the Agreement Details and/or the Annexures.

Project Activities means the activities of a Party to perform the Project described in Item 3 and/or the Annexures.

Project Intellectual Property means any Intellectual Property created by a Collaborating Organisation whilst performing any Project Activities.

Specified Personnel means the person(s) named in Item 5 of the Agreement Details that a Collaborating Organisation must use to perform the whole or part of the Project Activities.

Sponsor means the person or body providing the funding pursuant to the Head Agreement.

Statutory Terms means all conditions, warranties and terms arising directly or indirectly from any State, Territory or Commonwealth law that cannot be excluded, restricted or modified.

Third Parties means a Party's agents, subcontractors or consultants.

25.2 Interpretations

In this Agreement, unless the contrary intention appears:

- (a) headings are for convenience only and do not affect the interpretation of this Agreement;

- (b) a reference to a clause, schedule or recital is a reference, respectively, to a clause of, schedule to or recital of this Agreement; and
- (c) a reference to a statute or regulation includes an amendment or re-enactment to that legislation and includes subordinate legislation in force under it;
- (d) the singular includes the plural and vice versa;
- (e) a reference to a gender includes reference to every gender;
- (f) a provision of this Agreement will not be interpreted against a Party just because that Party prepared the provision;
- (g) the rights, obligations, representations, warranties and indemnities of a Party are given, undertaken, made or offered (as the case may be) jointly and separately by each of the parties who together constitute that Party under this Agreement and each of the rights, obligations, representations, warranties and indemnities of that Party is to be read accordingly;
- (h) the expression "person" includes an individual, a body corporate, a joint venture, a trust, an agency or other body

ANNEXURE A - HEAD AGREEMENT

Attached as a separate document and marked “ANNEXURE A – HEAD AGREEMENT”

ANNEXURE B – APPROVED BUDGET AS PER APPLICATION

Attached and marked “ANNEXURE B – APPROVED BUDGET AS PER APPLICATION”

ANNEXURE C – APPROVED ACTIVITY WORK PLAN AS PER APPLICATION

Attached and marked “ANNEXURE C – APPROVED ACTIVITY WORK PLAN AS PER APPLICATION”

ANNEXURE D - COLLABORATING ORGANISATION PROJECT FUNDING & ACTIVITIES**1. PROJECT FUNDING****1.1. Subject to:**

- (a) the DoHAC providing the Funding to the Administering Institution under the DoHAC Funding Agreement;
- (b) achievement of the Milestones specified in Table 2, below; and
- (c) satisfactory progress by the Collaborating Organisation against the Project Activities and Deliverables described in Table 3 below, and the Project Plan attached and marked Annexure 2, as determined by the Administering Institution, acting reasonably,

the Administering Institution will distribute to the Participating Organisation, Funding in accordance with Table 1 below.

1.2. All references to dollars in this Agreement are to Australian dollars and Funding will be paid in Australian dollars.

Table 1: Distribution of Funding

Party	FY 23-24	FY 24-25	FY 25-26
Collaborating Organisation	\$438,875.41	\$152,194.90	\$152,195.05

**The amount retained by Administering Institution is comprised of Funding to be distributed to the Other Participating Institutions/Organisations and funding to be retained and spent by the Administering Institution.*

1.3. The Parties agree that:

- (a) Funding will be spent only on the Project and in accordance with the budget approved under the Application unless otherwise agreed in writing between the Parties and approved by the DoHAC (if required); and
- (b) Any Funds provided by the Administering Institution to the Participating Organisation for the Research Activity that the Participating Organisation has not spent on the Research Activity in accordance with this Agreement will be repaid to the Administering Institution.

1.4. The Funding will be paid in accordance with the agreed Milestones and subject to compliance of Participating Organisation with their obligations under this Agreement.

Table 2: Milestones

#	Milestone	Anticipated date for completion of Milestone	Anticipated date of Instalment payment	Instalment payment (excl. GST)	GST	Total (incl. GST)
1.	Agreement signed	Upon execution of this Agreement	Within 30 days of execution of this Agreement	\$69,179.50	\$6,917.95	\$76,097.45
2.	Contribution to ethics application	20/12/2023	20/12/2023	\$69,179.50	\$6,917.95	\$76,097.45

Collaborative Research Agreement (Multi Party)

	and protocol description					
3.	Appointment of personnel as set out in the Activity Work Plan: i. Aboriginal Midwife or other as agreed by the Parties 1.00FTE ii. Senior Cultural Women advisors (up to 5 women sharing total 0.5FTE in the first 18 months of the Project then 0.3FTE for remainder)	On a date no later than four (4) months from the date of this Agreement.	20/01/2024	\$191,439.15	\$19,143.91	\$210,583.06
4.	Acceptance by the Administering Institution of Performance Report for the period from Execution Date to 31/12/2023 as per the requirements at Item 1.4 below.	30/01/2024	14/03/2024	\$69,179.50	\$6,917.95	\$76,097.45
5.	Acceptance by the Administering Institution of Financial Acquittal Report for the period from Execution Date to 31/12/2023 as per the requirements at Item 1.5 below					
6.	Acceptance by the Administering Institution of Financial Acquittal Report for the period from Execution Date to 30/06/2024 as	31/07/2024	14/09/2024	\$69,179.50	\$6,917.95	\$76,097.45

Collaborative Research Agreement (Multi Party)

	per the requirements at Item 1.5 below					
7.	Acceptance by the Administering Institution of Performance Report for the period from Execution Date to 30/06/2024 as per the requirements at Item 1.4 below					
8.	Acceptance by the Administering Institution of Financial Acquittal Report for the period from Execution Date to 31/12/2024 as per the requirements at Item 1.5 below	31/01/2025	14/3/2025	\$69,179.50	\$6,917.95	\$76,097.45
9.	Acceptance by the Administering Institution of Performance Report for the period from Execution Date to 31/12/2024 as per the requirements at Item 1.4 below					
10.	Acceptance by the Administering Institution of Financial Acquittal Report for the period from Execution Date to 30/06/2025 as per the requirements at Item 1.5 below	31/07/2025	14/08/2025	\$69,179.50	\$6,917.95	\$76,097.45
11.	Acceptance by the Administering					

	Institution of Performance Report for the period from Execution Date to 30/06/2025 as per the requirements at Item 1.4 below					
12.	Acceptance by the Administering Institution of Final Report including project/activity outcomes from the activity start date to completion.	31/11/2025	15/03/2026	\$69,179.64	\$6,917.96	\$76,097.60
13.	Acceptance by the Administering Institution of Financial Acquittal Report for the period from Execution Date to 31/12/2025 as per the requirements at Item 1.5 below	31/01/2026				
	TOTAL			\$675,695.67	\$67,569.56	\$743,265.24

1.4 Performance Reports

The Participating Organisation will provide the Administering Organisation with Performance Reports reporting on their performance of the Project Activities during the reporting period as follows:

(a) Complete, high quality nKPI data and OSR data (or other relevant data as indicated in AWP) on time for each reporting cycle;

(b) How the Activity aims and description have been met (with reference to the Activity Work Plan at Item 2 below);

(c) Progress against the Deliverables specified at Item 2 below;

(e) An explanation as to how the organisation is addressing any issues, problems or delays with the Activity; and

(f) Any proposed changes to the Activity Work Plan and Budget.

From time to time, Party A may provide additional instructions in relation to the required content and format of the Performance Report. The Grantee must provide the Performance reports at the time specified in Item E

1.5 Financial Acquitall Reports

Parties B, C and D will provide Part A with Financial Acquitall Reports during the reporting period as follows:

- a) Income and Expenditure Statement and Other Financial Information as requested, covering the whole reporting period; and
- b) Financial Declaration to be signed by the Chief Executive and an authorised Board member covering the whole reporting period.

2. PROJECT ACTIVITIES AND DELIVERABLES

Table 3: Activities and Deliverables

Activity	Participating Organisation's Role and Deliverables	Administering Organisation's Role	Expected date for completion
1. Scoping of BOC options at each partnering site			
Personnel	Recruit staff to assist with the BOC scoping and research at each service. The BOC Team comprises an Aboriginal Midwife (or other as agreed by the Parties) (1 FTE) and up to 5 Senior Aboriginal Community Women Advisors (total 0.5FTE for 1.5 years, then 0.3 FTE for final 6 months). The Midwife's role will be divided between research/community engagement, clinical and supervision. A Position Description and Career Progression Plan for each role must be developed and approved by the Administering Organisation prior to recruitment into the roles. The Position Description must incorporate the position information contained in the template Position Description at Annexure E.	Recruit key project staff to administer grant and support research on the Project. The Project Team comprises an Aboriginal Project Manager, an academic researcher and a research officer.	Within 16 weeks of signing CRA

Aboriginal Governance Process and Community Engagement Plan	Joint Responsibility: Aboriginal Governance Panel established. Terms of Reference (TOR) developed for panel. Community Engagement Plan developed and signed off. Community engagement plan developed with SCU and partnering services and stakeholders under the local guidance and advice of the Senior Aboriginal Women's Groups at each site. Three monthly meetings. Chair elected. Transparent processes governing the project and accountability for all expenditure.		30/11/2023
Ethics applications	BOC Teams provide advice to SCU for ethics approvals and project protocol.	SCU will apply for ethics approvals.	31/12/2023
Review BOC approaches	BOC Teams at each site will contribute perspectives about methodology and results for the review of BOC approaches.	SCU project team will conduct a review of approaches to BOC used in Australia, and present the results to the Partners, to aid in decision-making'.	
Increase community awareness of the project.	Partners will convene information sessions, BOC Camps (minimum 1 per site), 2-3 rounds of yarning circles at each site. Arrange for local artworks to be completed representing the project.	Project Team will assist in the organisation of the sessions, and support the data collection. Provide training for BOC Team in data collection (eg from yarning circles).	30/06/2024
Understand local stakeholder views about BOC models	BOC Teams and Senior Aboriginal Women provide feedback and advice on research methodology, data collection and aid with interpretation. BOC Team will help prepare plain language infographics of results and arrange presentations to governance panel and community. BOC Teams to organise promotional materials and merchandise as applicable for BOC resources.	SCU orders and provides shopping vouchers to reimburse attendees of research and yarning circles. SCU analyses and presents results of consultations to the Senior Aboriginal Women and Aboriginal governance team for their feedback and advice, and to the local communities.	

Analysis of structural and workplace requirements for BOC models.	Analysis of structural and workforce requirements for BOC for each partnering service's context. This will be conducted by the on-site midwife with support from the local cultural advisers, service managers, and the SCU team.	Summary reports written for the community and services about system requirements.	31/12/2024
5 year plans of Partners	BOC Team and management of each service develop 5 year plans, taking into account continuous quality improvement cycles. For the remainder of the project, the plans will be followed and progress will be reported in relation to capacity building, clinical services and client outcomes.	Project Team supports services in their development of 5 year plans.	30/06/2025
Collect and utilise data to guide project implementation, inform continuous quality improvement, assess indicative client outcomes, and guide clinical practice.	Joint Responsibility: Embedded throughout the whole project, using a Continuous Quality Improvement (CQI) Cycle, SCU will support the Partners to successively build their capacity and capability for continuity of care with the Aboriginal midwife/s, a gradual introduction of culturally appropriate, safe and traditional practices as advised by the Senior Aboriginal Women and informed by the scoping research and the services' 5 year plans. A summary report will be written by project end		14/11/2025
2.			
Augmented approaches to embed iSISTAQUIT into the current and future antenatal care and tailored plans for BOC iSISTAQUIT approaches. Co-design and adapt iSISTAQUIT to the context of	BOC Teams and partners to arrange co-design workshops to explore augmented and tailored delivery of iSISTAQUIT, and provide a plan to SCU for adaptation of the iSISTAQUIT resources Partners organise language services, merchandise, as appropriate.	Project Team support and contribute to the co-design process and review proposed plan for feasibility. SCU can arrange for photography, videographic, graphic design and printing, where appropriate	30/6/2024

partnering services.			
A pilot trial in each participating ACCHS of their preferred iSISTAQUIT augmented program.	Partners will pilot new options for iSISTAQUIT 6 months. BOC Team will provide routine data to support the CQI process and RE-AIM analysis (Reach, Effectiveness, Adoption, Implementation and Maintenance) of the tailored iSISTAQUIT approach	Project Team will support sites to measured impact of the pilot using a CQI design (routine service data for CQI accessed monthly) and the RE-AIM Framework.	30/06/2025
Future-proofing project	Joint Responsibility: Consideration will be given to how relationships with the Partners, stakeholders and advisors can become sustainable beyond this project and further MOUs developed.		30/11/2025
3.			
Midwifery student placements.	The recruited Aboriginal midwife or another midwife at Partnering sites will provide supervision for the Aboriginal midwifery student/s for an agreed placement/s. Partners will advise on or provide (if applicable) suitable accommodation. Partners will provide reports on student performance if required by SCU.	SCU will arrange a program to attract more undergraduate Aboriginal midwifery students including a scholarship program and coursework. Aboriginal students will be offered placements in the Partnering sites for On Country experiences (numbers by agreement) Up to 8 undergraduate scholarships and two Honours level scholarships will be available	30/11/2025

ANNEXURE E – TEMPLATES FOR POSITION DESCRIPTIONS

iSISTAQUIT BOC Midwife Position

Each participating ACCHS will recruit a midwife. This will be a full-time Aboriginal identified position. The local midwife will be under supervision from the CEO of the ACCHO or delegate. The midwife's role is to improve the antenatal and postnatal care of pregnant women, provide continuity of care as appropriate, contribute to the research and engagement on site, supervise visiting student midwives, and run the local iSISTAQUIT approach including advising on the augmented smoking cessation resources. Training will be provided by SCU on research and community consultation processes.

If delay is anticipated in filling the position, the ACCHS may suggest an Aboriginal Health Worker, Aboriginal Health Practitioner or Aboriginal Nurse to fill the role until a midwife is engaged.

Duties

1. Provide support for the iSQ BOC research at each site (estimate 0.6FTE of the role) including
 - a. Championing communications with the service staff and communities in which they are placed – including meeting with project staff at SCU on a weekly basis and investigators as required
 - b. Be part of the local governance for the project with grandmothers' group/cultural advisors and CEO and SCU.
 - c. Facilitating the process locally for determining the preferred BOC approaches to be considered for the 5 year plan
 - d. Assist with community consultations in the local ACCHS and community, including helping to convene women's camps, yarning circles, focus groups, and community events
 - e. Attending and helping prepare for and convene the governance meetings at the ACCHS
 - f. Help arrange ACCHS delegation to visit to an existing BOC site (may include midwife as one of delegates)
 - g. Advise on and arrange the local adaptation of ISQ resources, e.g, facilitate local discussions on the co-design, arrange trial of adapted resources
 - h. Support the collection of information from staff and patients to evaluate the adapted iSISTAQUIT resources pilot, including documenting supplies, use and reach of the resources, helping with interviews and surveys
 - i. Assist with access to KPI data required by the funding agreement with Dept of Health, once the data custodian has given approval
2. Provide clinical services and supervision (estimate 0.4 FTE of the role) including
 - a. Provide antenatal and postnatal care during business hours as required at the ACCHS
 - b. Supervise SCU midwifery students on placement at the service

Senior Cultural Advisors:

Each ACCHS will engage five Senior Aboriginal Women as cultural advisors to work part-time (total at each site equivalent of 0.5FTE) to provide cultural integrity and ensure the midwife is well supported in the community.

Duties

1. Being part of the governance team and grandmother's group that oversees the project, and provide timely advice for the project
2. Supporting the midwife's research and clinical role in the community
3. Promoting and championing the project in the community
4. Helping arrange and convene the women's camps, yarning circles and supporting attendees
5. Travelling as a delegate to view a functional BOC site if required
6. Communicating as required with SCU project staff and investigators

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Final Audit Report

2023-09-26

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